

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

THOMPSON PIPE GROUP, INC., *Complainant*

v.

OMNI LOGISTICS LLC, *Respondent*.

DOCKET NO. 22-31

Served: December 20, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

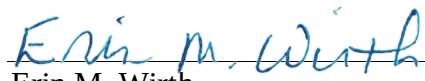
ORDER ON UNOPPOSED MOTION FOR EXTENSION OF TIME TO RESPOND TO COMPLAINT

On December 16, 2022, the Respondent filed a motion seeking an extension from December 26, 2022, to January 23, 2023, to respond to the complaint, stating that counsel has a “challenging schedule, which is compounded by year-end obligations and the upcoming holidays.” Motion at 1. The motion states that counsel for Complainant does not oppose the request for an extension of time.

The initial decision in this proceeding is due within one year of filing the complaint. Notice of Filing of Complaint and Assignment at 2. Undue delays at the beginning of a proceeding make this deadline difficult to meet. To ensure that this proceeding stays on schedule, a shorter extension will be approved. In addition, the time to submit a joint status report with proposed schedule will be shortened.

The parties are reminded to review the initial order issued on November 30, 2022, available at <https://www2.fmc.gov/readingroom/proceeding/22-31>. All filings must be emailed to secretary@fmc.gov with a courtesy copy (cc) to judges@fmc.gov and opposing counsel.

For the reasons stated above, is hereby **ORDERED** that the motion be **GRANTED IN PART AND DENIED IN PART**. Respondent shall respond to the complaint by January 17, 2023. The parties shall file their joint status report with proposed schedule by January 27, 2023.


Erin M. Wirth
Chief Administrative Law Judge